

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 173 बी एन एस एस के अन्तर्गत)

वि.पु.स्था.सी-

II

FIRST INFORMATION REPORT (Under Sec.173 BNSS)

S.P.E.C.-II

बुक नं.

क्रम सं.

Book No. 2024

Serial No. 31

1.	जिला:	थाना:	वर्ष:	प्र. सू. प्र. क्र.	दिनांक:
	District	PS:	Year	FIR No.	Date
	Chandigarh	CBI, ACB, CHG	2024	RC0052024A0031	07.11.2024

2.	(1)	विधान:	धाराएं:
		Act	Sections:
		PC Act, 1988	7
		(as amended in 2018)	

(2)	विधान:	धाराएं:
	Act	
	-	

Sections: -

(3)	विधान:	धाराएं:
	Act	
	-	

Sections: -

(4)	अन्य विधान एवं धाराएं:	
	Others Acts & Sections	-

3.	(क)	प्रतीत अपराध:
		Suspected Offence : Demand of undue advantage.

(ख)	दिन	दिनांक	समय
(b)	Day	Date	Time

From 07.11.2024 onwards.

(ग)	थाने पर सूचना प्राप्त होने का	दिनांक
(c)	Information received at PS	Date
	CBI, ACB, Chandigarh	07.11.2024

कायमी अपराध :	दिनांक	समय
Entry No.	Date	Time
06	07.11.2024	03.00 PM

4.	सूचना का प्रकार :	लिखित/मौखिक
	Type of information	Written/Oral
	Complaint	Written

5.	घटना का स्थान	
	Place of occurrence	Chandigarh.

(क)	थाने से दिशा व दूरी :	
(a)	Direction & Distance from PS :	-

बीट सं./Beat No.

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- (ख) पता:
(b) Addresses: **Chandigarh.**

- (ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना-
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम जिला
Name of PS - District-

6. अभियोगी/सूचनाकर्ता
Complainant / Informant. Complainant

- (क) नाम
(a) Name **Sh. Deepak Sharma**
- (ख) पिता/पति का नाम
(b) Father's/Husband's Name **S/o Sh. Prem Kumar Sharma**
- (ग) जन्म तिथि (घ) राष्ट्रियता
(c) Date of Birth - (d) Nationality **Indian**
- (ड.) पासपोर्ट नं.....जारी दिनांक.....जारी होने का स्थान
(e) Passport No. - Date of Issue - Place of issue-
- (च) व्यवसाय
(f) Profession **Pvt. Person.**

- (छ) पता-
(g) Address **R/o Flat No. 5302, Riverdale Apartments, Zirakpur, Punjab.**

7. ज्ञात/संदेही/अज्ञात/आरोपी का पूर्ण विवरण
Details of known/suspected/unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

1. **Sh. Dasheru Singh, SFO, Fire Station Manimajra, Chandigarh.**

8. अभियोगी/सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण:
Reasons for delay in reporting by the complainant/informant.
—
9. अपहृत/सम्बद्ध सम्पत्ति का पूर्ण विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
—
10. अपहृत/सम्बद्ध सम्पत्ति का मूल्य:
Total value of property stolen
—
11. मर्ग/अकाल मृत्यु सूचना क्रमांक:
Inquest Report/U.D. Case No., if any,
—
12. प्रथम सूचना का विवरण:- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Verification report dated 07.11.2024 of Sh. Narendra Kalwaniya, Inspector, CBI, ACB, Chandigarh and complaint dated 07.11.2024 of Sh. Deepak Sharma S/o Sh. Prem Kumar Sharma R/o Flat No. 5302, Riverdale Apartments, Zirakpur, Punjab are attached as per Annexure "A" & "B" respectively. The allegations mentioned in the complaint were verified by Sh. Narendra Kalwaniya, Inspector, CBI, ACB, Chandigarh and found to be true.

Hence, a Regular Case is registered and entrusted to Inspector Arun Ahlawat, CBI, ACB, Chandigarh.

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13. कार्यवाही जो की गई: चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है
Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or
Took up for investigation

A regular case is registered.

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No Took up for
Investigation

**Sh. Arun Ahlawat, Inspector,
CBI, ACB, Chandigarh**

Yes

- (3) कारण से जांच के नामंजूर अथवा
Refused investigation due to or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी/सूचनाकर्ता को प्र. सू. पत्र पढ़ाकर/पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया।
इसकी एक प्रति अभियोगी/सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name **(Karan Singh Rana)**
(पद) / Rank **Addl. Superintendent of Police,
CBI, DSPE, ACB, Chandigarh.**

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the Court

(Karan Singh Rana)
**Addl. Superintendent of Police,
CBI, DSPE, ACB, Chandigarh.**

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report -- **NIL**

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण:-

Physical features, deformities and other details of the suspect/accused: (if known/seen)

क्र.सं. S.N o.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Ye ar of Birth	*शारीरि क गठन (Built)	*ऊंचाई से. मी. में (Heigh t) (in cms)	*वर्ण (Complexio n)	*पहचान चिन्ह (Identificati on Mark/s)
1	2	3	4	5	6	7
-	-	-	-	-	-	-

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13
-	-	-	-	-	-

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19
-	-	-	-	-	-

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

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CONFIDENTIAL

VERIFICATION REPORT DATED 07.11.2024

A handwritten complaint dated 07.11.2024 (in English) lodged by Shri Deepak Sharma S/o Prem Kumar Sharma R/o Flat No. 5302, Riverdale Apartments, Zirakpur, (Punjab) was marked to me for verification and report. I discussed the contents of the complaint with the complainant Shri Deepak Sharma. Complainant identified his signatures on the complaint dated 07.11.2024 and also owned the contents of the complaint.

Contents of the complaint:

In his complaint, complainant Sh Deepak Sharma has submitted that he is doing as job in engineer in V.K. Fire Safety and System, Zirakpur, Punjab. His firm installed a fire fighting and fire alarm work in SCO- 179/180, Sector 8-C, Chandigarh. After completion of work his firm applied for N.O.C of the above said work/ system.

Complainant further submitted that Senior Fire Officer Dasheru Singh and Kamleshwar Nehra (L/F) visited the site two times. After inspection Dasheru Singh (SFO Manimajara) demanded bribe of Rs 1,00,000 from the complainant, in presence of Kamleshwar Nehra for issuance of NOC of the building for the fire fighting and fire alarm system installed.

As complainant do not want to pay the bribe amount of Rs. 1 Lakh to Senior Fire Officer Dasheru Singh and his PA Kamleshwar Nehra hence, he lodged his written complaint addressed to the DIG, CBI, Chandigarh requesting therein that legal action may be taken against Senior Fire Officer Dasheru Singh and his PA Kamleshwar Nehra.

Result of Verification:

In order to verify the genuineness of content of the complaint, I arranged one Sony DVR, along with fresh Memory cards of 32 GB from the office for the purpose of recording the conversation to be held between the complainant Deepak Sharma and suspects Dasheru Singh, SFO and his PA Kamleshwar Nehra. The contents of the

②

complaint was again discussed with complainant and he was apprised the method of verification. During discussion complainant informed that both suspect Dasheru Singh and Kamleshawar Nehra sit in same chamber/room. In order to further substantiate the allegation of demand of bribe of Rs. 1 Lakh, it has been decided that complainant will go to the office of Dasheru Singh and Kamleshawar Nehra at Fire Station, Manimajara. After that a fresh memory card was inserted in the Sony DVR and the said Sony DVR was placed on the person the complainant Deepak Sharma.

Thereafter, around 12:00 PM I along with the complainant left for Fire office, Manimajara. Complainant left in his own vehicle and I followed him in official vehicle. After reaching near Fire Office, Manimajara complainant stopped his car. After that the Sony DVR already placed on the person of complainant was put on recording mode. After around 12:20 PM complainant went inside the Fire Station, Manimajara to meet the suspects Dasheru Singh and Kamleshawar Nehra.

I took convenient position at the safer distance in the vicinity of the Fire Station and waited for the complainant for his return. At about 12:40 PM, complainant Shri Deepak Sharma returned. The Sony DVR was took out and switched off.

On being asked to complainant, he informed me that after putting the Sony DVR on recording mode he went inside the Fire Station and met with Suspect SFO Dasheru Singh in his chamber. He further informed that Suspect Kamleshwar Nehra was also present in the chamber. At this complainant requested suspect Dasheru Singh for issuance of NOC. Complainant further requested that demanded bribe amount of Rs. 1 Lakh is a big amount and he is able to pay only 50,000. On the repeated request of the complainant, suspect Dasheru Singh asked to complainant to pay the bribe amount of Rs. 80,000 in lieu of issuance of NOC.

After that I along with complainant Deepak Sharma came to the CBI Office at around 01:00 PM. I heard the conversation recorded in memory card with the help of SONY DVR on my laptop. The conversation was saved in the memory card as File name 241107_1221. The relevant parts of the conversation are as under:-

File No.: 241107_1221

C denotes complainant : Deepak Sharma

D denotes suspect : Dasheru Singh

K Denotes suspect : Kamleshwar Nehra

Start Time : 04:20 Min.

D: hanji bolo

C: aap batao sir mai to proceedings karwane aya tha bass

D: proceedings ke bare mein bataya to tha

C: sir vo baat kari thi maine

D: haan

C: jaise sir ne bola tha 1 ke liye

D: haan bolo

C: too abhi maine baat kari thi vo fifty (50) ke liye keh rahe the mere ko, to sir chota sa kaam hai usme itna kuch profit hai nahi, aage bhe kam karna hi hai apke sath judke

D: fir to nahi hoga

C: sir jo bhe thik thoda sa thoda sa dekho aap,..... kabhi aisa na ho ki merko jeb se dene pad jaye, to aise kaam karne ka koi fayda nahi hai sir, long term jab apse judna hai to ek baar,..... baki agar kuch bada project hota to mai soch bhe leta chlo,..... SCO ss chota sa showroom hai

D: chota showroom

C: chota hi hai sir, project hota, bada kuch hota, residential hota to chalo uske liye baaat bhe karte

D: is samay yahi chal reha hai

C: hanji

D: itne SCO ka yahi chal reha hai

C: 1 se kam nahi hoga

D: hoga kam na ye to fifty (50) percent pe le aya ye to thik nahi hai

C: nahi sir kuch to bolunga unko mai bhe, maine unko bola ki, unhone jo bola, fir sham tak arrange karke dena bhe hai apko.....

End Time : 06:35 Min.

.....

Start Time : 08:00 Min.

C: mai to ye request kar rha tha sir kuch ho jaye isme..... 70 tak to maine unko bol diya hai

D: hai to ham bhe..... Pta kya hai hmare sath aise kar rahe hai dusre ke sath aise Kar rahe hai

C: sir maine kisi ko batana thodi hai

D: nahi batana to.....

C: mera to pta hai, mai to outsider hoon, Chandigarh to rehta nahi hun, ki bhai aisa aapas me kisi se milun ya batau vo ek alag chij hai

D: haan fir to thik hai

D: isme kitni kamiyan bolre hai

K: kamiyan sir, system to complete hai

C: sir dekh lo thodi si request hai baki or to kuch nahi, aage bhe kam karna hi hai apke sath, 50 unhone bola hai, 70 maine bol diya hai, 20 sir ko mai orr bol dunga bss issss se jyada mat karvao, mera bhe kaam hoo, merko bhe payment leni hai aage uss se

D: hota hi hai bhai vo to sabhi ka hi hai vo to, **eighty (80) kardo eighty (80)**

C: 80 (assi), chalo mai bolta hun unko, mai 3 baje tak aauga sir 3 sade 3 tak, Yahin aa ya kaise

D: yahin aa jana daftar mein

C: Thik hai, mai apko 1 baar ring kar lunga

D: nhi aap aa jana

C: bass thik

C: thik hai sir thanku, itna regard kar diya bahoot hai mere liye

D: okay ...

End Time: 10:10 Min

From the said conversation, it is clearly established that suspect SFO Dasheru Singh, has demanded & agreed to accept undue advantage of Rs 80,000 from complainant Shri Deepak Sharma in lieu of issuing NOC of fire system installed at a building.

It is further submitted that Suspect Dasheru Singh demanded the bribe amount of Rs 80,000 in presence of his PA Kamleshwar Nehra but there is no clear demand from the suspect Kamleshwar Nehra.

I appraised the above said development to competent authority. One memory card of 32 GB each make Sandisk, which was used for the purpose of verification of this instant complaint, is in my custody, which will be handed over to the TLO. I directed the complainant Shri Deepak Sharma to arrange bribe amount of Rs. 80,000 to be handed over to suspect SFO Dasheru Singh on 3:30 PM (07.11.2024) and attend the CBI office on 2:30 PM (07.11.2024). Thereafter, he left the CBI office.

(71)

Recommendation:

In the light of the above mentioned facts, it is recommended to register a regular case u/s 7 of Prevention of Corruption Act, 1988 (as amended in 2018) against suspect SFO Dasheru Singh, Fire Station Manimajra, Chandigarh for demand and agree to accept bribe/ undue advantage of Rs. 80,000 from the complainant Shri Deepak Sharma. It is further recommended that the role of Kamleshwar Nehra may in to looked into during the investigation.

Submitted please.

Narendra
7/11/2024
(Narendra Kalwaniya)
Inspector, CBI, ACB,
Chandigarh.

W/HOB

RC be registered. Insp. Arun Ahlawat
to conduct trap proceedings.
Please put draft RC.

[Signature]
7.11.2024

To,

The D.I.G.
C.B.I Sec-30
Chandigarh.

Sub:- Complaint against fire officer Dasher Singh & Kamleswar Nehra for demanding bribe.

Dear Sir,

With Reference to above mentioned subject, I would like to inform you that my self Deepak Sharma Doing job in v.k. fire safety & system Zirak Pur Punjab as a Engineer. owe firm doing fire fighting and fire alarm work in SCO No- 179/180 Sec-8-C Chandigarh. After that we applied for fire fighting N.O.C of the above said work/system. Senior fire officer Dasher Singh and Kamleswar Nehra (L/F) visited our site 2 times. After their visit Sfo Dasher Singh (Sfo mohimajra) Demanded Rs 1 Lac as Bribe. from me in presence of Kamleswar Nehra against issuance of Noc of the Building for the fire fighting and fire alarm system installed.

Sir I dont want to give bribe to S.f.o Dasher Singh and his PA kamleswar Nehra. There fore, it is requested to take an legal action against a fore mentioned officers for demanding Bribe.

inspr. Nand Lal
Kulwinder to
verify & report.

Thank's & regards.

Deepak
7/11/24

Atul
7/11/24

Deepak Sharma.
S/o Prem Kumar Sharma,
Flat No - S302 Herdale
apartment Zirak Pur -
(Punjab).
9891637724.